

25CHCV04317 25CHCV04317

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Case Number: 25CHCV04317 Hearing Date: September 21, 2026 Dept: F43

Dept. F43

Hearing Date: 09-21-26

Case # 25CHCV04317, Estrada v. JRK

Transport, Inc., et al.

Trial Date: None set.

MOTION TO COMPEL

FURTHER RESPONSES TO DISCOVERY

MOVING PARTY:

Plaintiff Adelina Estrada

RESPONDING PARTY: Defendant JRK Transport, Inc.

RELIEF REQUESTED

Order compelling defendant JRK Transport, Inc. to serve objection-free responses to plaintiff's sets of form interrogatories, special interrogatories, requests for admissions, requests for production, and initial disclosures pursuant to Code of Civil Procedure section 2016.090.

RULING: Motion is denied.

SUMMARY OF ACTION

Plaintiff Adelina Estrada (Plaintiff) filed

this personal injury action against defendants JRK Transport, Inc. and Rahul

Panwar on December 4, 2025, asserting motor vehicle and negligence. Plaintiff alleges she suffered injuries and damages from defendant Panwar colliding with her vehicle due to Mr. Panwar's

negligent operation of a commercial vehicle owned by JRK Transport, Inc. The incident occurred while Mr. Panwar was acting

within the course of his employment with JRK Transport, Inc. JRK Transport filed an answer on July 8, 2026.

On May 14, 2026, Plaintiff electronically

served defendant JRK Transport with her first sets of form interrogatories,

special interrogatories, requests for admissions, requests for production, and

plaintiff's demand for initial disclosures pursuant to Code of Civil Procedure

section 2016.090. (Declaration of Daniel

Banafsheian ¶ 3.) The moving papers do

not include proof that these discovery requests were ever served.

On June 11, 2026, defense counsel requested a

three-week extension, but plaintiff's counsel only granted a ten-day extension. (Banafsheian Decl. ¶ 4.) On June 23, 2026, defense counsel requested a

second extension to July 9, 2026, which plaintiff's counsel granted. (Ibid.) Defendant JRK Transport electronically served

identical objection-only responses on July 9, 2026. (Id. ¶¶ 6-10.) Plaintiff claims the responses did not

include a privilege log. The moving

papers do not include copies of the responses with the moving papers. On July 13, 2026, plaintiff's counsel sent a

"meet and confer" letter, identifying issues and requesting objection-free,

compliant supplemental responses by July 23, 2026. (Id. ¶ 11.) Counsel spoke by telephone on July 22, 2026,

with defense counsel, stating JRK Transport needed more time to provide

substantive responses and was working to secure the responses. (Id. ¶ 12.) Plaintiff's counsel sent follow-up emails on

August 5, 12, 17, and 25, 2026, and defense counsel responded that they were

awaiting a response from JRK Transport or their adjuster. (Id. ¶ 14.) As of August 26, 2026, no further responses have been received.

On August 26, 2025, Plaintiff filed the

instant motion to compel defendant JRK Transport, Inc. to serve objection-free,

further responses to Plaintiff's first sets of form interrogatories, special

interrogatories, requests for admissions, requests for production, and initial

disclosures pursuant to Code of Civil Procedure section 2016.090.

Defendant JRK Transport, Inc. (Defendant)

filed an opposition on September 8, 2026.

Defendant contends it has been denied due process because Plaintiff failed to file and serve the moving papers 16 court days, plus two calendar days before the hearing date, accounting for additional days for electronic service of the moving papers.

Furthermore, Plaintiff improperly seeks relief by combining four discovery motions into one document. Finally, defense counsel has been unable to have any significant or substantive conversations with Defendant's company representative since June of 2026.

No reply has been filed.

MEET AND CONFER

A motion to compel further responses to interrogatories, requests for production, and requests for admissions must include a declaration stating facts showing a "reasonable and good faith attempt" to resolve the issues mentioned in the motion before filing. (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1), , 2031.310, subd. (b)(2), 2033.290, subd. (b)(1).) In Department F43, meet and confer means in person or via phone. Letters and emails do not suffice. (Department F43 Courtroom Information, p. 2.)

Because counsel conferred telephonically about Defendant's initial responses, the "meet and confer" requirement is met.

ANALYSIS

A. Plaintiff

failed to timely serve the instant motion.

Defendant contends Plaintiff's motion was untimely filed and served based on Code of Civil Procedure section 1005, subdivision (b).

Unless otherwise specified by law, all moving and supporting papers must be filed and served at least 16 courts days before the noticed hearing date. (Code Civ. Proc., § 1005, subd. (b).) When the moving papers are served by facsimile or another method of overnight delivery, the 16-day notice period is extended by two calendar days. However, the moving papers indicate the

instant motion was served by email, not facsimile or another method of overnight delivery.

The correct statutory basis, which JRK Transport fails to reference, is Code of Civil Procedure section 1010.6. Where the motion is served electronically or by express mail, the motion must be filed and served at least 18 court days before the noticed hearing date. (Golf & Tennis Pro Shop, Inc. v. Superior Court (2022) 84 Cal.App.5th 127, 136-138; Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) Because Plaintiff electronically served the instant motion on August 26, 2026, the earliest the court could hear this motion is September 22, 2026. Otherwise, the latest Plaintiff could have filed and served her motion was August 25, 2026. Thus, the motion is untimely.

Plaintiff does not dispute the service defect or file a reply addressing the issue.

The court has discretion to consider a late motion where the moving party is not prejudiced or their substantive rights are not affected. (See Harlan v. Department of Transportation (2005) 132 Cal.App.4th 868, 873-875.) Here, Defendant was able to file a timely opposition, but the opposition is focused on procedural deficiencies rather than the substance of Plaintiff's arguments. Defendant contends it has been denied due process and will suffer prejudice if the court grants the motion. (Opp. at pp. 2:4-14, 3:12-14.) However, Defendant provides no facts demonstrating prejudice. On the other hand, defense counsel does not provide any substantive response to Plaintiff's motion, other than stating counsel's inability to locate or communicate with Defendant's representative, Yadvinder Singh, since March 25, 2025. (Declaration of Mahesh Subramanian ¶¶ 4-11. See Harlan v. Department of Transportation (2005) 132 Cal.App.4th 868, 873-875 [court has discretion to consider late-filed papers if the opposing party is not prejudiced or the opposing party's substantive rights are not affected].) Defense counsel does not state whether Plaintiff's counsel was informed of this issue.

Regardless, the court finds the motion deficient due to untimely service.

B. Although

no statutory provision bars omnibus discovery motions, Plaintiff's notice of motion is defective, Plaintiff fails to provide copies of the served discovery requests and responses, and Plaintiff fails to provide a separate statement for her special interrogatories.

Defendant also challenges the motion for including four discovery motions in one document.

Although the structure of the Civil Discovery Act and the California Rules of Court strongly disfavor omnibus discovery motions, no particular statutory provision bars a party from serving an omnibus motion where the statutory requirements are met.
(See Code Civ. Proc., §§ 2030.300, 2031.310, 2033.290; Cal. Rules of Court, rule 3.1345(a)(1)-(3).)

However, Plaintiff's omnibus motion includes several procedural issues which render the motion deficient and non-compliant.

First, the title of Plaintiff's motion seeks further responses to form interrogatories, special interrogatories, requests for admission, and requests for production.

Yet, the notice of motion and memorandum and points of authorities address only requests for admissions numbers 1 through 47. Furthermore, the court was only able to determine the problematic discovery responses through a review of the three separate statements. Notices of motion must be in writing and must state when and the grounds upon which the motion is made, and the papers, if any, upon which it is to be based. (Code Civ. Proc., § 1010.) "The purpose of the notice requirements is to cause the moving party to sufficiently define the issues for the information and attention of the adverse party and the court." (Luri v. Greenwald (2003) 107 Cal.App.4th 1119, 1125, emphasis added.)

For motions to compel further discovery responses, the notice of motion must identify the specific discovery requests at issue and state the grounds for the motion, otherwise, the notice of motion is ineffective. (Golf & Tennis Pro Shop, Inc. v. Superior Court (2022) 84 Cal.App.5th 127, 136-138.) Thus, Plaintiff's motion is also procedurally defective due to a non-compliant notice of motion.

Second, Plaintiff only provides separate statements for the form interrogatories, requests for production, and requests for admission. Motions to compel further

responses to requests for production or interrogatories must be accompanied by a separate statement. (Cal. Rules of Court, rule 3.1345(a)(2)-(3).) "The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response." (Cal. Rules of Court, rule 3.1345(c); see also id. [outlining format and substantive requirements for separate statements].) The court may, in its discretion, deny a motion to compel further production if the motion is accompanied by a deficient separate statement. (Cf. *In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1296; see also *Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893.)

If Plaintiff does not seek further responses to special interrogatories, Plaintiff should have clarified as much in her notice of motion and memorandum of points and authorities. Thus, the motion is deficient in part due to the missing special interrogatory separate statement.

Finally, Plaintiff has failed to provide the court with copies of the initial discovery requests with proofs of service and copies of Defendant's responses with proofs of service. Without this information, the court cannot determine whether the discovery requests were properly served, whether the responses in the separate statements reflect the responses that were actually served, and whether Plaintiff's motion is timely according to the 45-day deadline. (See Code Civ. Proc., §§ 2030.290, 2030.300 [court must determine interrogatories were properly served and motion filed 45 days after service of verified responses]; Code Civ. Proc., § 2033.290 [court must determine requests for admissions were properly served and motion filed 45 days after service of verified responses]; Code Civ. Proc., §§ 2031.20, 2031.300, 2031.310 [court must determine requests for production were properly served and motion timely filed].)

In considering each of these procedural deficiencies, the court finds that Plaintiff's omnibus motion fails to comply with the Discovery Act and is uncertain as to which discovery requests Plaintiff seeks further responses.

Therefore, the court denies Plaintiff's motion to compel further responses to her first sets of requests for production, requests for admissions, special interrogatories, and form

interrogatories.

CONCLUSION and ORDER

Plaintiff's motion to compel further responses to her first sets of requests for production, requests for admissions, special interrogatories, and form interrogatories is denied.

Plaintiff to give notice.